

20STCV37014 20STCV37014

County: los-angeles

Division: Civil Law and Motion

Department: 310

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Case Number: 20STCV37014 Hearing Date: August 20, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 20, 2026

Case Name: Esparza v. Conagra Brands, Inc., et al.

Case No.: 20STCV37014

Matter: Motion to Tax Costs

Ruling: The Motion is granted in part. Plaintiff is awarded \$122,312.44.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

Plaintiff Roland Esparza brought this action against more than twenty-five entities, including Defendant Conagra Brands, Inc. ("Conagra"), alleging he developed bronchiolitis obliterans from exposure to diacetyl in butter-flavored cooking spray. Following a trial, the jury returned a verdict in Plaintiff's favor on theories of both strict liability and negligence, awarding \$25 million in non-economic damages and \$0 in economic damages. The jury assigned 100 percent responsibility to Conagra. The Court granted a nonsuit as to punitive damages.

On June 12, 2026, Plaintiff filed a memorandum of costs in the amount of \$285,685.58.

Conagra now seeks to tax Plaintiff's costs.

"If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion." (Ladas v. Cal. State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.)

"Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (CCP § 1033.5(c)(2).)

Items not specifically mentioned in CCP § 1033.5 "may be allowed or denied in the court's discretion."

In response to Defendant's Motion, Plaintiff voluntarily conceded non-recoverable items and reduced the requested amount to \$271,038.12.

1. Filing and Motion Fees: (Requested: \$13,192.61 | Adjusted: \$13,157.46 | Allowed: \$11,357.96)

Pro hac vice fees for lead trial counsel Jacob W. Plattenberger and pretrial counsel Scott B. Hall are allowed as reasonably necessary given the six-year, complex nature of this product liability litigation. However, Mr. Plattenberger's PHV fee was listed as \$534.31, while the receipt shows an actual payment of \$512.50; the \$21.81 difference is taxed.

Plaintiff conceded \$35.15 in docket access charges. Additionally, Plaintiff failed to provide receipts substantiating the 12/15/2022 PHV fee (\$649.75) and 11/15/2023 renewal fees (\$1,299.50), which exceed statutory rates without explanation. \$1,777.69 in unexplained overcharges is taxed.

2. Deposition Costs (CCP § 1033.5(a)(3)): (Requested: \$99,858.16 | Adjusted: \$91,520.78 | Allowed: \$51,802.77)

Core transcript and video recording fees supported by standard invoices (\$40,236.65) are allowable under section 1033.5(a)(3)(A).

Plaintiff requested about \$9,000 for "exhibit technicians" to display electronic documents during depositions. Displaying deposition exhibits is a task routinely handled by counsel. Plaintiff failed to show special necessity. Taxed in full (\$9,000).

Plaintiff conceded \$308.75 for video sync and \$3,778.63 in local ground travel/fuel. Out-of-state airfare/lodging for key depositions is allowed. However, Plaintiff failed to submit receipts for \$35,031.36 in contested lodging/travel entries (e.g., \$2,163.14 for Beverly Hills lodging). These unsubstantiated amounts are taxed.

3. Service of Process (CCP § 1033.5(a)(4)): (Requested: \$6,242.33 | Adjusted: \$5,522.79 | Allowed: \$5,122.79)

Service costs on former co-defendants are allowed because Conagra received a \$2,069,000.00 judgment credit flowing directly from those settlements, making those initial service costs reasonably necessary to the overall action.

Plaintiff conceded \$719.54 in improper/unsubstantiated service charges. An additional \$400.00 in unexplained duplicative service attempts is taxed.

4. Court Reporter Fees for Trial (CCP § 1033.5(a)(9), (b)(1)): (Requested: \$72,545.79 | Adjusted: \$67,884.09 | Allowed: \$29,539.44)

Daily pro tem reporter attendance fees of \$850.00 are reasonable and allowed under Code of Civil Procedure section 1033.5(a)(11) (\$26,350.00 total).

Providing a split-cost live feed to the trial judge at the Court's request is allowed in the Court's discretion under section 1033.5 (\$3,189.44). Realtime feeds for counsel's own use are non-statutory convenience items and are taxed.

Unordered daily copy transcripts, rough drafts, and late cancellation fees are non-allowable under section 1033.5(b) and Government Code section 69953. Plaintiff conceded rough drafts (\$2,447.70), Smart Summaries (\$1,434.00), secure file hosting (\$560.00), and reporter parking (\$220.00).

5. Models, Enlargements, and Photocopies of Exhibits (CCP § 1033.5(a)(13)): (Requested: \$84,832.50 | Adjusted: \$83,939.91 | Allowed: \$19,307.00)

Plaintiff requested \$61,444.22 for trial presentation support. E-discovery and trial technology costs are entirely discretionary (Science Applications, supra, 39 Cal.App.4th 1095). While in-court presentation equipment aids the trier of fact, passing off off-site graphic designers, "war room" support, and vendor travel onto the losing party is unreasonable. Exercising discretion pursuant to American Airlines, Inc. v. Sheppard, Mullin, Richter & Hampton (2002) 96 Cal.App.4th 1017, the Court awards \$19,307.00 for core electronic presentation equipment rental and basic setup. The remaining \$42,137.22 is taxed.

Plaintiff sought \$22,494.69 for printing 72 exhibit binders but failed to provide underlying invoices or demonstrate why duplicate printing was required after being challenged. Taxed in full (\$22,494.69). Plaintiff conceded office overhead items (printers and AI subscription totaling \$893.59).

6. Fees for Electronic Filing or Service (CCP § 1033.5(a)(14)): Taxed \$0.00 (Requested \$2,553.43; Allowed \$2,553.43)

Pursuant to Los Angeles Superior Court Local Rule 3.4(a), electronic filing and service through an approved vendor is mandatory. These statutory vendor fees are explicitly allowable under section 1033.5(a)(14) and are unchallenged by Defendant. Allowed in full.

7. Other Costs (CCP § 1033.5(c)): Taxed \$3,831.71 (Requested \$3,831.71; Allowed \$0.00)

Plaintiff's claim for miscellaneous "Other" expenses lacks statutory authorization under section 1033.5 and was not substantiated with adequate evidentiary proof or justification showing why discretionary allowance is warranted. Taxed in full.

8. Jury Fees (CCP § 1033.5(a)(1)): Taxed \$0.00 (Requested \$2,629.05; Allowed \$2,629.05)

Statutory jury fees are recoverable as a matter of right and were uncontested by Defendant. Allowed in full.

In sum, the Motion is granted in part. The Court taxes \$148,725.68. The Court awards \$122,312.44 in costs.

Moving party to give notice.